

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rachel Adler	Team: Squad #3	CCRB Case #: 202007896	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 10/08/2020 9:00 PM	Location of Incident: § 87(2)(b) [REDACTED]	Precinct: 100	18 Mo. SOL 4/8/2022	EO SOL 5/4/2022	
Date/Time CV Reported Tue, 11/24/2020 10:03 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Tue, 11/24/2020 10:03 AM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. PO Genaro Gabbe	16240	957607	100 PCT
2. PO Andrew Taormina	30097	955561	100 PCT
3. SGT Charles Grimm	5142	941279	100 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Christine Thomson	03176	939580	100 PCT
2. POM Michael Deninno	26464	945660	100 PCT
3. POM Matthew Foley	10028	965103	100 PCT
4. SGT Juan Lordi	4327	932920	100 PCT

Officer(s)	Allegation	Investigator Recommendation
A. PO Genaro Gabbe	Abuse: Police Officer Genaro Gabbe entered § 87(2)(b) [REDACTED] in Queens.	[REDACTED]
B. PO Andrew Taormina	Abuse: Police Officer Andrew Taormina entered § 87(2)(b) [REDACTED] in Queens.	[REDACTED]
C. SGT Charles Grimm	Abuse: Sergeant Charles Grimm forcibly removed § 87(2)(b) [REDACTED] to the hospital.	[REDACTED]

Case Summary

On November 24, 2020, 35-year-old § 87(2)(b) filed this complaint in person at the CCRB on his own behalf and on behalf of his mother, § 87(2)(b).

On October 8, 2020, at approximately 9 P.M., § 87(2)(b) called 911 to report that § 87(2)(b) needed mental health help and was destroying her apartment § 87(2)(b) at § 87(2)(b) in Queens. PO Genaro Gabbe, PO Andrew Taormina, and Sgt. Charles Grimm, all assigned to the 100th Precinct, responded. PO Gabbe and PO Taormina entered the apartment (**Allegations A and B, Abuse of Authority: § 87(2)(g)**). Sgt. Grimm then removed § 87(2)(b) to St. John's Episcopal Hospital in Queens (**Allegation C, Abuse of Authority: § 87(2)(g)**). § 87(2)(b) was not arrested or given any summonses.

The investigation obtained body-worn camera (BWC) footage from PO Gabbe, PO Taormina, and Sgt. Grimm, as well as PO Matthew Foley, PO Michael Deninno, and PO Christine Thomson, also assigned to the 100th Precinct (**01-06 Board Review**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Genaro Gabbe entered § 87(2)(b), in Queens.

Allegation (B) Abuse of Authority: Police Officer Andrew Taormina entered § 87(2)(b), in Queens.

Allegation (C) Abuse of Authority: Sergeant Charles Grimm forcibly removed § 87(2)(b) to the hospital.

§ 87(2)(g)

It is undisputed that PO Gabbe and PO Taormina responded to § 87(2)(b) in Queens, after § 87(2)(b) called 911 asking for mental health assistance for § 87(2)(b). PO Gabbe and PO Taormina were the first officers on scene, arriving at the same time as EMS. When PO Gabbe knocked on the apartment door, § 87(2)(b) answered and opened the door. § 87(2)(b)'s name was on the lease of the apartment and § 87(2)(b) had been living there for several months. PO Gabbe and PO Taormina then entered the apartment, after which § 87(2)(b) approached and spoke to them. Sgt. Grimm arrived shortly thereafter. The EMTs ultimately transported § 87(2)(b) to § 87(2)(b) with PO Gabbe and PO Taormina accompanying them.

During his interview, § 87(2)(b) stated that he was in the apartment when § 87(2)(b) began speaking about a CCRB complaint § 87(2)(b) had filed a year earlier (**07 Board Review**). § 87(2)(b) told § 87(2)(b) that the CCRB investigation had yielded no results and that she had observed more injustice since he had filed the complaint. § 87(2)(b) then called 911 and told the operator that § 87(2)(b) was paranoid and having "mental problems." These allegations were false. At least four officers then arrived at the apartment. Since § 87(2)(b) is § 87(2)(b)'s mother, the officers believed her when she told them that § 87(2)(b) was suffering from mental health issues. The officers then took § 87(2)(b) to the hospital. He did not recall how long he remained in the hospital. § 87(2)(b) refused to sign a HIPAA form.

In her unverified phone statement, § 87(2)(b) stated that she had called 911 regarding § 87(2)(b) at least four or five times prior to October 8, 2020 (**08 Board Review**). For this reason, it was difficult for her to remember the details of what happened on October 8, 2020. She recalled that officers informed her that she could not evict § 87(2)(b) because he had stayed at her apartment for longer than 30 days. They stated she would have to go to family court or get an order of protection against § 87(2)(b). § 87(2)(b) did not believe that § 87(2)(b) was removed to the hospital on October 8, 2020.

At 1:05 minutes in PO Taormina's BWC footage attached to IA 43, PO Gabbe, PO Taormina, and two EMTs arrive at the apartment **(02 Board Review)**. PO Gabbe knocks on the apartment door. § 87(2)(b) opens the door and stands on one side of it, while extending his arm to hold it wide open. He is calm and moves at a normal pace. PO Gabbe states, "Hey, how are you doing, sir? How's everything going?" At 1:14 minutes, PO Gabbe crosses the threshold of the door while stating, "How are you doing, ma'am?" § 87(2)(b) who is walking toward the door, states, "How are you?" PO Gabbe then takes one step further into the apartment and states, "Is everything okay?" § 87(2)(b) states, "He needs to go." PO Gabbe then walks further into the apartment. PO Taormina follows PO Gabbe and appears to have crossed the threshold. At 1:19 minutes, § 87(2)(b) states, "Let me show you." She then walks into a room to the right of the front door. At 1:26 minutes, PO Taormina walks into the apartment. At 2:20 minutes, § 87(2)(b) states, "Come in here. I'm in here. Come in my house." An EMT who had been standing beside the door then enters the apartment. At 13:30 minutes, PO Taormina is filling out a domestic incident report (DIR) while speaking to § 87(2)(b). PO Taormina states, "He make any threats?" § 87(2)(b) states, "He always threatens [inaudible]." PO Taormina asks, "Does he have access to guns?" § 87(2)(b) states, "No." PO Taormina asks, "Does he make you fearful?" § 87(2)(b) states, "Sometimes he does [...] meaning he'll flinch at you." She moves her body quickly toward and away from PO Taormina. She holds up a finger and states, "He'll go, 'You gonna get it.' Stuff like that." PO Taormina asks, "So you're afraid he's going to hit you?" § 87(2)(b) states, "No, he didn't do that."

At 1:08 minutes in PO Gabbe's BWC footage attached to IA 42, § 87(2)(b) opens the apartment door in response to PO Gabbe's knocking **(01 Board Review)**. At 1:12 minutes, while PO Gabbe is still outside the apartment, § 87(2)(b) lets go of the front door and it begins to close. § 87(2)(b) then grabs the door a second time and holds it open.

At 7:12 minutes in Sgt. Grimm's BWC attached to IA 121, Sgt. Grimm asks PO Taormina, "So what do we got? He disconnected the modem and that's it?" **(03 Board Review)** PO Taormina states, "Yeah." At 11:30 minutes, an EMT approaches § 87(2)(b) and states, "We're going to have to take a little ride to the hospital. All right?" § 87(2)(b) states, "You can't force me to go. Why are you trying to force me to go? You're supposed to ask me a question [...] what's the series of questions that you're supposed to ask me?" The EMT then asks § 87(2)(b) whether he wants to kill himself or others and whether he is hearing voices. § 87(2)(b) answers no to all the questions. The EMT then states, "Your mother is stating that you're acting paranoid, looking out the window." § 87(2)(b) states, "She's lying. She lied to you guys on the call. She said I'm § 87(2)(b). I'm § 87(2)(b) years old." § 87(2)(b) again states that he does not need to go to the hospital. The EMT states, "Well my conclusion says to me that you need to go. I concluded that you need to go."

Sgt. Grimm, PO Gabbe, and PO Taormina all testified that they received the call for an "emotionally disturbed person" at the location and did not recall what, if any, additional information the dispatcher provided **(09-11 Board Review)**. All three also testified that they had not previously encountered § 87(2)(b) and did not have any information about him prior to arriving at the apartment. Finally, they all stated that EMS determined § 87(2)(b) should be removed to the hospital, after which officers accompanied him to § 87(2)(b) in Queens.

PO Gabbe testified that when he and PO Taormina arrived, § 87(2)(b) answered the door, stated that she had called, and began a conversation with the officers **(10 Board Review)**. PO Gabbe did not recall if § 87(2)(b) told officers to enter. He did not explain to § 87(2)(b) that she had a right to deny the entry. § 87(2)(b) started speaking immediately in an engaging manner. While speaking, she pointed into the apartment at § 87(2)(b) and the modem, thus organically leading the officers inside the apartment. § 87(2)(b) did not say she did not want the officers to enter; if she had, PO Gabbe would have explained that she did not have to allow them to do so. There was no reason to believe that an emergency was at hand. However, since the incident came over as an "emotionally disturbed person," the officers had to investigate, which usually entails going into the apartment. After watching his BWC attached to IA 42 from the 0:58 to the 1:22 minute mark, PO Gabbe stated that he had misremembered, and that § 87(2)(b) had opened the door. He noted that § 87(2)(b)

appeared in the hallway immediately thereafter and started speaking to the officers. PO Gabbe did not know if he had crossed the threshold of the apartment at that time. After watching PO Taormina's BWC attached to IA 43 from the 1:06 to the 1:20 minute mark, PO Gabbe stated that he had one foot in and one foot out of the apartment when § 87(2)(b) began talking. He reiterated that if § 87(2)(b) had told him not to enter, he would not have done so. Additionally, he noted that in his experience, if a civilian does not want officers to enter, they will crack open the door and not allow them in. Based on the way § 87(2)(b) opened the door and stepped away and § 87(2)(b) immediately stated, "He needs to go," PO Gabbe assumed that § 87(2)(b) needed his assistance and so he stepped in. Finally, the fact that the incident involved an "emotionally disturbed person" led PO Gabbe to believe that someone was having issues inside the apartment and might need help. When PO Gabbe entered, § 87(2)(b) told him that she wanted § 87(2)(b) out of her apartment because he constantly unplugged the modem and cable box. She also stated that § 87(2)(b) suffered from a mental health condition, although PO Gabbe did not recall if she specified what condition this was. § 87(2)(b) told PO Gabbe that law enforcement was surveilling him through the cable box, which is why he kept unplugging it. He showed PO Gabbe a book and stated that he was documenting everything; the book was filled with scribbles and illegible writing. § 87(2)(b) did not make any threatening remarks or actions. PO Gabbe was present when EMS spoke with § 87(2)(b) but did not recall the content of the conversation.

PO Taormina testified that he was standing behind PO Gabbe when PO Gabbe knocked on the apartment door **(11 Board Review)**. § 87(2)(b) then opened the door and took a few steps back. PO Taormina understood this as a gesture to the officers that they should follow him to communicate. One second later, § 87(2)(b) was standing behind § 87(2)(b) and stated, "He needs to go." Neither § 87(2)(b) nor § 87(2)(b) said anything about the officers entering the apartment and did not tell them to leave. PO Taormina did not recall if he or PO Gabbe asked permission before entering the apartment. PO Taormina entered the apartment because in situations involving an "emotionally disturbed person," officers must enter since such individuals are unable to care for themselves and are endangering themselves or others. When entering the apartment, PO Taormina did not have any information about the specific incident beyond what was transmitted over the radio. After viewing his BWC attached to IA 43 from the 1:02 to the 1:29 minute mark, PO Taormina stated that since neither § 87(2)(b) nor § 87(2)(b) refused entry, he believed that he had consent to enter. If § 87(2)(b) or § 87(2)(b) asked the officers to leave, he would have left. Additionally, § 87(2)(b) opened the door in a manner that led PO Taormina to believe he wanted to communicate. Finally, the officers were permitted to enter since the incident was related to an "emotionally disturbed person." PO Taormina stated that in any incident involving an "emotionally disturbed person," officers may enter since they must ensure all parties are safe. Once inside the apartment, PO Taormina spoke with § 87(2)(b) who was making incoherent statements and seemed upset due to the high pitch of his voice. § 87(2)(b) stated that officers or the FBI was monitoring him through the internet; he kept looking out the window as he said this. PO Taormina did not recall if § 87(2)(b) made any threatening remarks. PO Taormina then interviewed § 87(2)(b) who told him that § 87(2)(b) needed to go to the hospital because he was hearing things. She also stated that § 87(2)(b) believed that the police or FBI was monitoring him and that he kept unplugging the modem. While PO Taormina was speaking with § 87(2)(b) EMTs were questioning § 87(2)(b) but he could not hear their conversation.

During his interview, Sgt. Grimm stated that when he arrived at the apartment, EMS and PO Gabbe were already speaking with § 87(2)(b) **(09 Board Review)**. PO Gabbe was just over the threshold of the apartment when § 87(2)(b) told him that § 87(2)(b) suffered from paranoia and was not taking his medication. Sgt. Grimm did not hear § 87(2)(b) make any threatening remarks. § 87(2)(b) did not seem to pose a threat to himself or others. The EMT then walked right next to Sgt. Grimm and began asking § 87(2)(b) health-related questions.

In the 911 call recording for NYPD Event #§ 87(2)(b) generated for this incident and attached to IA 184, § 87(2)(b) tells the operator that she needs the police because her son needs "mental health help" and to be moved out of her apartment **(12 Board Review)**. She further states

that her son is “touching everything in the apartment, he’s destructing my apartment.” The operator connects § 87(2)(b) to EMS who asks her if her son is having a mental breakdown. § 87(2)(b) responds, “Yes. He’s doing something. He’s searching everything in my apartment for no reason.” EMS then asks § 87(2)(b) if § 87(2)(b) had tried to harm himself or anyone else. § 87(2)(b) responds, “Yeah. He flinched at me.” Before ending the call, § 87(2)(b) states that she has an order of protection against § 87(2)(b). In the radio messages for the same Event, the dispatcher states that a call for an “EDP” had come over at § 87(2)(b). The dispatcher adds that the caller’s son has a known mental health condition and needs to be removed from the location. The dispatcher also states that the caller “states she has an order of protection against AIDED.”

NYPD AIDED form #§ 87(2)(b), completed by PO Taormina states that § 87(2)(b) was “suffering from paranoid thoughts that the Police and FBI are surveilling him” (13 Board Review). The form notes that § 87(2)(b) did not attempt to physically harm himself or others, did not put himself in a dangerous situation, did not physically or verbally threaten others, and did not speak of harming himself or others.

NYPD DIR form #§ 87(2)(b) completed by PO Gabbe notes that § 87(2)(b) made § 87(2)(b) fearful by “sometimes mak[ing] physical flinching,” (14 Board Review). The form further notes that, according to § 87(2)(b) § 87(2)(b) stares out the window for hours stating that the police and FBI are after him. Additionally, § 87(2)(b) unplugged the modem, stating that the FBI is surveilling him.

NYPD Patrol Guide Procedure 221-13 defines an emotionally disturbed person as a “person who appears to be mentally ill or temporarily deranged” who must be taken into protective custody if officers reasonably believe that the person is likely to injure themselves or others (15 Board Review). When an officer reasonably believes that a “person who is apparently mentally ill or emotionally disturbed, must be taken into protective custody because the person is conducting himself in a manner likely to result in a serious injury to himself or others,” officers are to restrain the individual if necessary and “have [the] EDP removed to hospital in ambulance.” When this is the case, officers are even permitted to forcibly open doors to access a residence if necessary.

NYPD Patrol Guide Procedure 216-01 regards any person other than a prisoner who requires medical aid or assistance due to sickness or injury (16 Board Review). In such cases, procedure states that officers should render reasonable aid to the sick or injured person and request an ambulance or doctor, as necessary. Officers are then to fill out an AIDED report. The procedure also notes, “Uniformed members of the service concerned shall cooperate with ambulance/hospital personnel in every reasonable manner.”

According to *People v. Desmarat*, 38 A.D.3d 913, officers may enter a residence without a warrant if they have “reasonable basis to believe that an emergency [is] at hand, that other people may be at risk of injury, and that the emergency is associated” with the residence they are entering (17 Board Review).

According to *People v. Brown* 234 A.D.2d 211, “consent to enter a home may be established by conduct, as well as words,” (18 Board Review). In the case, an individual’s gesture of opening the door to her residence, “leaving it wide open, and the walking away from it could certainly be interpreted by police to consist of tacit approval for them to enter.”

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to nine additional CCRB complaints, § 87(2)(b)
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- § 87(2)(b) has been a party to two additional CCRB complaints (**20 Board Review**). She was named as a victim in one additional CCRB complaint and one additional allegation:

- § 87(2)(b)
- PO Gabbe has been a member of service for six years and this is the first CCRB complaint in which he has been subject.
- PO Taormina has been a member of service for eight years and has been a subject in four additional complaints and six additional allegations, none of which were substantiated. § 87(2)(b) (g)
- Sgt. Grimm has been a member of service for 15 years and has been a subject in one additional complaint, which was not substantiated.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- On October 15, 2021, the Office of the New York City Comptroller confirmed that neither § 87(2)(b) nor § 87(2)(b) filed a notice of claim in relation to this incident (**21 Board Review**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 1

Investigator: Rachel Adler Investigator Rachel Adler 11/5/2021
Signature Print Title & Name Date

Squad Leader: Joy Almeyda Inv. Mgr. Joy Almeyda 11/8/2021
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date